

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 08/12/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
8	UDR Eight80 II LP. vs. Charon	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 15) and the Complaint (ROA 2). The Court OVERRULES the Demurrer and orders the Defendants to file an Answer within 5 business days. The Court will note that the Plaintiff attached to the Complaint "Lease Addendum Election to Pay Rent Twice Each Month," which shows that, in order to be in the program, the tenant needs to pay a higher rate of \$1432 on the 1st of the month and \$1382 on the 15th of the month, which was signed by both tenants on 4/8/25. Plaintiff is ordered to provide notice of the Court's ruling.
10	U.S. Bank Trust National Association, not in its individual Capacity but Solely as Trustee of Plaza RTL Trust, its assignees	The Court has read and considered the Defendant, Alejandro Alvarado's Motion to Quash Service of Summons Pursuant to CCP § 418.10 (ROA 27). The Court takes Judicial Notice of the Prejudgment Claim of Right of Possession (ROA 7), Motion to Dismiss (ROA 8) and Proof of Service by Posting (ROA 21).

and/or successors vs.
Crea Group Inc.

The Proof of Service by Posting (ROA 21) shows that on July 8, 2026 service was provided to all unknown occupants pursuant to California Code of Civil Procedure §415.46 via substitute service of defendant Carlos Calvillo Sr., posting and mailing via first class mail on 7/9/2026.

Defendant Alejandro Alvarado filed a Prejudgment Claim of Right of Possession (ROA 7) on July 13, 2026. Number 12 of the Prejudgment Claim of Right of Possession form states, “I understand that I will have *five days* (excluding court holidays) to file a response to the Summons and Complaint after I file this Prejudgment Claim to Right of Possession form.”

On the same date, July 13, 2026, Defendant Alvarado filed a Motion to Dismiss (ROA 8). A Motion to Dismiss is an improper responsive pleading filed after being served with a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer.

California Code of Civil Procedure § 1174.25(a)(1) states, “Filing the prejudgment claim of right to possession shall constitute a general appearance.” California Code of Civil Procedure § 410.50(a) states, “A general appearance by a party is equivalent to personal service of summons on such party.”

As such, the Court DENIES Defendant Alvarado’s Motion to Quash Service of Summons. Additionally, the Court STRIKES the Defendant’s Motion to Dismiss as an improper filing under California Code of Civil Procedure § 1170(a). The Court vacates the 9/18/2026 hearing on the Motions to Dismiss.

Alejandro Alvarado is ordered to file a responsive pleading pursuant to California Code of Civil Procedure § 1170(a), excluding a Motion to Quash Service of Summons, within five calendar days.

The Court Clerk is to provide notice of the Court’s ruling.

Date: 08/14/2026

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#	Case Name	Tentative
3	30-2025-01458445 AIC Owner, LLC, vs. Buy Insta Slim, Inc.	On 2/5/2025, a Complaint for unlawful detainer was filed in this matter, which the UD-100 form states is an unlimited civil case as the amount demanded exceeds \$35000, but as possession was at issue at the time, the matter was assigned to Dept 61, which is a courtroom of limited jurisdiction regarding unlawful detainer proceedings. There is a related case 30-2025-01475463-CU-BC-CJC assigned to Department C13 with the same parties and subject to the same lease agreement. On 11/5/2025, the third amended complaint was filed in this matter for breach of written lease, breach of guaranty, and common counts, and possession has not been at issue. This Court, Department C61, is a court of limited jurisdiction where this Court hears matters on an expedited basis with a heavy caseload because the issues are related to possession of real property. It is a waste of judicial resources to have two judicial officers working on essentially the same matter in two different departments. As this case is already an unlimited case based on the damages sought and possession is no longer at issue, and there is a related matter assigned to a different department, on the Court's own motion the matter will be referred to Department C23 for reassignment as an unlimited civil case.
4	30-2025-01495577 Minus K28, LLC vs. Zahedi	Pending; check back later
5	30-2025-01485744 Seal Beach Mutual No. One vs. Rutledge	Pending; check back later
6	30-2026-01567683 Tran vs. Kim	The Court takes Judicial Notice of related matter 30-2026-01566561-CU-OR-CJC for which there is a pending Motion to Consolidate before Judge Lee Gabriel. The Motion to Consolidate was continued by Judge Gabriel to August 25, 2026. The Court advances and vacates the August 19, 2026 hearing date in C61 and the August 24, 2026 hearing in C61. This Court continues the Motion for Summary Judgement/Adjudication to August 28, 2026, at 8:30 AM in Department C61. The Court also sets that date for a status conference hearing to get an update as to the Motion to Consolidate from the related matter in the Unlimited Department with Judge Gabriel.

		The Court Clerk is to provide notice of the Court's ruling.
8	30-2026-01579803 Tustin Parc L.P. vs. Marin	This case is off calendar. The Motion to Dismiss was ruled on 7/20/2026.
9	30-2026-01569359 USCMF Joule La Floresta, LLC vs. Yazouri	Pending; check back later
10	30-2026-01577309 Yang vs. Byun	The Court has read and considered the Defendant's Demurrer to the Amended Complaint (ROA 30) and the Amended Complaint (ROA 20). The Court finds that <i>Summit Office Park, Inc. v. United States Steel Corp.</i> (hereinafter "<i>Summit</i>"), 639 F.2d 1278 (1981), is distinguishable from the facts in this case. Summit, an indirect purchaser, attempted to file an amended complaint after a Supreme Court decision saying that indirect purchasers had no cause of action under federal antitrust laws, to add two new plaintiffs who were purported to be direct purchasers and to change the cause of action. As indicated by the <i>Summit</i> Court, the circumstances of that case were unique and there was no way in which the plaintiff could properly amend the complaint to give it a cause of action after the Supreme Court decision. This Court finds the holding of the California Supreme Court in <i>Klopstock v. Superior Court of San Francisco</i> (1941) 17 Cal.2d 13 to be more directly on point to the issues in this matter. On July 15, 2026, this Court sustained the Defendant's demurrer, giving the Plaintiff leave to amend the complaint within 10 business days. During the original filing, Choun Yang filed the unlawful detainer proceeding as an individual named on the lease as the housing provider, but the demurrer was originally sustained on July 15, 2026, because a trust is the legal owner of the property. The Amended Complaint shows the plaintiff as Choun Yang, trustee of the trust, which is suing on the same basis for the unlawful detainer action; the amendment does not constitute a statement of a wholly different cause of action. The Court OVERRULES the Demurrer to the Amended Complaint. The Defendant is ordered to file an answer within 5 business days. The Court Clerk is to provide notice of the Court's ruling.
11	30-2026-01584197 Cecilia & John III LLC vs. Thomson	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 10) and the Complaint (ROA 2) The Court SUSTAINS the Demurrer with leave to amend. Nothing is attached to the Complaint; the Complaint is vague and ambiguous as currently pleaded. The Plaintiff is ordered to amend the Complaint within 5 business days, or the matter will be dismissed. The Court sets an OSC re dismissal on 8/28/2026 at 8:30 AM in Department C61.

		The Court Clerk is to provide notice of the Court's ruling.
12	30-2026-01585437 Redwood Court Apartments, LLC vs. Delgadillo	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 18) and the Complaint (ROA 2). The Demurrer is OVERRULED. The Defendants are ordered to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court's ruling.